

26SMCV00672 26SMCV00672

County: los-angeles

Division: Civil Law and Motion

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Case Number: 26SMCV00672 Hearing Date: September 4, 2026 Dept: N

TENTATIVE RULING

Plaintiff Villa Canon Homeowners Association's Motion to Compel Responses to Request for Production of Documents From Defendant Raafat Iskander is GRANTED. Defendant Raafat Iskander shall serve code-compliant responses to Plaintiff Villa Canon Homeowners Association's Requests for Production of Documents (Set One), without objections, within thirty (30) days of entry of this order.

Plaintiff Villa Canon Homeowners Association's Motion for Order That Matters for Admissions be Deemed Admitted Against Defendant Raafat Iskander is GRANTED. The truth of the matters set forth in Requests for Admissions (Set One) is hereby deemed admitted.

Plaintiff Villa Canon Homeowners Association's Requests for Monetary Sanctions are GRANTED in the reduced total amount of \$900, payable by Defendant Raafat Iskander to Plaintiff Villa Canon Homeowners Association and Plaintiff's counsel within thirty (30) days of entry of this order.

Plaintiff Villa Canon Homeowners Association to give notice.

REASONING

If a responding party fails to serve timely responses to requests for admission and requests for production, (1) the responding party waives all objections to the discovery (unless the court relieves the party from the waiver) and (2) the propounding party may move for an order compelling initial responses to the requests for production and to deem the truth of the matters specified in the requests for admission admitted. (Code Civ. Proc., §§ 2033.280, subds. (a), (b) [requests for admissions]; 2031.300, subds. (a), (b) [requests for production].) Such motions are not subject to meet and confer requirements or filing deadlines.

Plaintiff Villa Canon Homeowners Association ("Plaintiff") served Defendant Raafat Iskander ("Defendant") with its Requests for Production of Documents (Set One), and Requests for Admissions (Set One) on April 3, 2026. (Mots., Zvonicek Decs. ¶ 3.) Responses were due on or before May 5, 2026, and Plaintiff's counsel also communicated with Defendant to extend the response date to May 22, 2026. (Mots., Zvonicek Decs. ¶ 5.) To date, no responses have been received. (Mots., Zvonicek Decs. ¶ 6.)

Accordingly, Plaintiff's requests to compel Defendant's initial responses to Requests for Production of Documents (Set One), and to deem its Requests for Admissions (Set One) admitted are GRANTED. Defendant shall serve code-compliant

responses to the Requests for Production of Documents (Set One), without objections, within thirty (30) days of entry of this order. The truth of the matters set forth in the Requests for Admissions (Set One) is hereby deemed admitted.

Plaintiff requests \$1,685 in monetary sanctions for each motion. If a motion to compel initial responses to requests for production is filed, the Court shall impose a monetary sanction against the losing party "unless it finds that the one subject to the sanction acted with substantial justification or that other circumstances make the imposition of the sanction unjust." (Code Civ. Proc., § 2031.300, subd. (c).) However, "[i]t is mandatory that the court impose a monetary sanction under Chapter 7 (commencing with Section 2023.010) on the party or attorney, or both, whose failure to serve a timely response to requests for admission necessitated [the] motion." (Code Civ. Proc., § 2033.280, subd. (c).) "The court may award sanctions under the Discovery Act in favor of a party who files a motion to compel discovery, even though no opposition to the motion was filed, or opposition to the motion was withdrawn, or the requested discovery was provided to the moving party after the motion was filed." (Cal. Rules of Court, rule 3.1348(a).)

The Court finds that monetary sanctions are proper but reduces the amount to \$900 because these motions were not complex and the declarations submitted in support of the motions were nearly identical. As in the Court's ruling on Plaintiff's other discovery motions, \$900 represents two hours spent preparing each motion and one hour spent appearing at the hearing on the motions (equals three hours), at the reduced rate of \$300 per hour.

Accordingly, Plaintiff's Requests for Monetary Sanctions are GRANTED in the reduced total amount of \$900 for the two motions, payable by Defendant to Plaintiff and Plaintiff's counsel within thirty (30) days of entry of this order.